

CV-25-012513 CARRILLO, HECTOR vs STANISLAUS COUNTY SHERIFFS OFFICE – Petitioner’s Motion for Reconsideration [Code Civ. Proc. 10089(a) & 473(b)] – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The court finds that Petitioner’s motion does not meet the requirement of “new or different facts, circumstances, or law” but is essentially a repetition of Petitioner’s prior Motion to Vacate and Reset hearing. Code of Civ Pro §1008(a); Crotty v. Trader (1996) 50 Cal. App. 4th 765, 771; Forrest v. Department of Corporations (2007) 150 Cal. App. 4th 183; David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP (2024) 103 Cal. App. 5th 935. However, the court on its own motion reviews its prior ruling of May 14, 2026, and in the face of Petitioner’s excusable mistake, diligence and lack of prejudice to Respondent, the Court grants the motion. The court hereby vacates and sets aside its ruling of May 14, 2026. Le Francois v. Goel (2005) 35 Cal.4th 1094, as modified. Petitioner’s Petition for Writ of Mandate is reset for hearing on August 27, 2026, at 8:30 am in Department 24 of this court for oral arguments only.

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